

TENTATIVE RULING

Case: **Strode v. Ewing**
 Case No. CV2022-1460

Hearing Date: **September 2, 2026** **Department Fourteen** **9:00 a.m.**

The petitioner, Beatriz Strode, and the claimant, James “Jimmy” W. Strode, are **DIRECTED TO APPEAR** (in person or by Zoom). (Cal. Rules of Court, rule 7.952; YCR 2.4.) If the parties fail to appear at the hearing and the Court has not excused their personal appearance, the petition will be denied without prejudice. No request for a hearing is required.

TENTATIVE RULING

Case: Ulyott v. Elve, Inc.
Case No. CV2026-0598

Hearing Date: September 2, 2026 **Department Fourteen** **9:00 a.m.**

Demurrer:

Defendants Elve, Inc. and Diana Gamzina’s request for judicial notice is **DENIED**. (Evid. Code, §§ 452, 453.) The documents are irrelevant to the Court’s determination of the demurrer. (*Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825 [“Any matter to be judicially noticed must be relevant to a material issue”].)

Defendants’ demurrer as to the first cause of action (retaliation in violation of Whistleblower Protection) is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Defendants have failed to establish that the first amended complaint (“FAC”) does not state facts sufficient for this cause of action. (Lab. Code, § 110.2, subd. (b); FAC, ¶¶ 27-38.) Specifically, defendants have not shown that plaintiff Colin Ulyott fails to allege: (1) a protected disclosure; or (2) a reasonable belief that the information disclosed a violation of state or federal statute. (*People ex rel. Garcia-Brower v. Kolla's, Inc.* (2023) 14 Cal.5th 719, 726 & 734; *Contreras v. Green Thumb Produce, Inc.* (2025) 116 Cal.App.5th 1251, 1259-1260; see FAC, ¶¶ 23, 31.)

Defendants’ demurrer as to the second cause of action (wrongful termination in violation of public policy) is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Based on the Court’s ruling as to the first cause of action, defendants have not established that the FAC does not state facts sufficient for this cause of action. (Ps & As, p. 9.)

Defendants’ demurrer as to the third cause of action (breach of covenant of good faith and fair dealing) and fourth cause of action (breach of contract) are **SUSTAINED WITH LEAVE TO AMEND**. (Code Civ. Proc., § 430.10, subd. (e).) Based on the contract attached to the FAC, plaintiff has not sufficiently alleged that defendants breached a term of the contract. (See *Careau & Co. v. Security Pacific Business Credit, Inc.* (1990) 222 Cal.App.3d 1371, 1388; FAC, ¶¶ 17 & 56-61, Exhibit A, §§ 2.7, 7.4.) Specifically, section 2.7 of the parties’ contract defines “cause” – it does not require defendants to provide 30 days’ notice before a termination based on “neglect or persistent unsatisfactory performance.” (FAC, ¶ 17, Exhibit A, § 2.7.) As plaintiff’s third cause of action is based on the failure to provide 30 days’ notice, this cause of action also fails. (FAC, ¶¶ 48-54.)

Defendants’ demurrer as to the fifth cause of action (intentional interference with contract) is **SUSTAINED WITHOUT LEAVE TO AMEND**. (Code Civ. Proc., § 430.10, subd. (e).) “[C]orporate agents and employees acting for and on behalf of a corporation cannot be held liable for inducing a breach of the corporation's contract.” (*Mintz v. Blue Cross of California* (2009) 172 Cal.App.4th 1594, 1604, citation and quotation marks omitted; *Shoemaker v. Myers* (1990) 52 Cal.3d 1, 24.) As plaintiff alleges that defendant Diana Gamzina is the founder and CEO of Elve, Inc, she cannot be held liable for interfering with plaintiff and Elve, Inc.’s contract. (FAC, ¶¶ 3, 14.) As there is no reasonable possibility that plaintiff can amend the complaint to state this cause of action against Gamzina, the Court declines to permit leave to amend. (See *Heckendorn v. City of San Marino* (1986) 42 Cal.3d 481, 486 [“If it is